

Amendment No. 1 to HB1349

Terry
Signature of Sponsor

AMEND Senate Bill No. 1146*

House Bill No. 1349

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 38-7-109, is amended by adding the following as a new subsection:

(c)

(1)

(A) If a county medical examiner's office or regional forensic center is conducting an autopsy on a decedent who is suspected to have committed a mass shooting that resulted in the deaths of four (4) or more individuals, then the county medical examiner or regional forensic center shall consult such decedent's treating mental health professional or primary care physician, if known and reasonably able to be identified through the decedent's next of kin, to obtain information regarding the decedent's psychotropic drug use.

(B) The county medical examiner shall test the decedent for the presence of any drugs, including therapeutic levels of psychotropic drugs.

(2)

(A) The county medical examiner's office or regional forensic center shall disclose the drug use of the decedent to the health science center and to the department of health.

(B) The county medical examiner's office or regional forensic center shall not disclose any identifying information including the

decedent's name or social security number when disclosing the drug use of the decedent to the health science center and to the department of health.

(C) The county medical examiner shall send only a blood sample of the decedent to the health science center.

(3) The health science center shall study the drug interactions between the psychotropic drugs and any other drugs that were present in the decedent's system as provided by the county medical examiner as described in subdivision (c)(2)(A).

(4) The health science center shall submit quarterly reports of all data obtained pursuant to this section to the chief clerk of each house of the general assembly.

(5) As used in this subsection (c):

(1) "Health science center" means the University of Tennessee's health science center college of pharmacy; and

(2) "Psychotropic drug" means a medication prescribed for the treatment of mental or behavioral health conditions or a drug prescribed for any condition that exercises a direct effect upon the central nervous system and that is capable of influencing and modifying mood, perceptions, and behavior, including:

(A) Agents for control of mania and depression;

(B) Antidepressants, including selective serotonin reuptake inhibitors;

(C) Antipsychotics;

(D) Anxiolytics;

(E) Hypnotics;

(F) Mood stabilizers;

(G) Hormonal medication with the primary goal of altering a person's physical appearance and sexual characteristics existing at the person's birth;

(H) Psychomotor stimulants;

(I) Stimulants; and

(J) Benzodiazepines.

(6) The county medical examiner, regional forensic center, department of health, and the health science center must follow all relevant state and federal privacy laws related to the implementation of this section.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.